

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SHARON BANNISTER,

Plaintiff,

-against-

AMENDED SUMMONS

THE CITY OF NEW YORK, DETECTIVE GUSTAVO
ROSADO, Shield No. 513, UNDERCOVER POLICE
OFFICER, Shield No. 358, UNDERCOVER POLICE
OFFICER, Shield No. 93, DETECTIVE KEVIN CLARKE,
SERGEANT ANIS NIKOCEVIC, POLICE OFFICER
JESUS SOSA, POLICE OFFICER JELANI MILLS, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Amended Complaint in this action, and to serve a copy of your Verified Answer to the Verified Amended Complaint, or, if the Verified Amended Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the amended complaint.

DATED: New York, New York
October 16, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE GUSTAVO ROSADO, Shield No. 513, Narcotics Borough Manhattan
North, One Police Plaza, New York, NY 10038
UNDERCOVER POLICE OFFICER, Shield No. 358, Narcotics Borough Manhattan
North, One Police Plaza, New York, NY 10038
UNDERCOVER POLICE OFFICER Shield No. 93, Narcotics Borough Manhattan
North, One Police Plaza, New York, NY 10038
DETECTIVE KEVIN CLARKE, Narcotics Borough Manhattan North, One Police Plaza,
New York, NY 10038
SERGEANT ANIS NIKOCEVIC, Narcotics Borough Manhattan North, One Police
Plaza, New York, NY 10038
POLICE OFFICER JESUS SOSA, Narcotics Borough Manhattan North, One Police
Plaza, New York, NY 10038
POLICE OFFICER JELANI MILLS, Narcotics Borough Manhattan North, One Police
Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SHARON BANNISTER,

Plaintiff,

-against-

INDEX NO.:

VERIFIED AMENDED
COMPLAINT

THE CITY OF NEW YORK, DETECTIVE GUSTAVO
ROSADO, Shield No. 513, UNDERCOVER POLICE
OFFICER, Shield No. 358, UNDERCOVER POLICE
OFFICER, Shield No. 93, DETECTIVE KEVIN CLARKE,
SERGEANT ANIS NIKOCEVIC, POLICE OFFICER
JESUS SOSA, POLICE OFFICER JELANI MILLS, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, **SHARON BANNISTER**, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Amended Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 28, 2016, at approximately 3:30 p.m., plaintiff Sharon Bannister, while lawfully present inside of the 116th Street 2 Train Subway Station located at 116th Street and Lenox Avenue, New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was also subject to assault, battery, and the use of excessive force by the defendant police officers when they slammed her to the ground without legal justification, causing plaintiff severe pain and requiring plaintiff to receive medical treatment at Montefiore Hospital. Thereafter, on March 11, 2020, after being forced to appear in Court on approximately 37 occasions over the course of 3 years, all charges against plaintiff were dismissed and sealed. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, denied the right to a fair trial, and falsely

arrested plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff SHARON BANNISTER is a resident of the state of New York.
3. DETECTIVE GUSTAVO ROSADO, Shield No. 513, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. DETECTIVE GUSTAVO ROSADO, Shield No. 513, is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.
5. DETECTIVE GUSTAVO ROSADO, Shield No. 513, is being sued in her individual and official capacity.
6. UNDERCOVER POLICE OFFICER, Shield No. 358 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. UNDERCOVER POLICE OFFICER, Shield No. 358 is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.
8. UNDERCOVER POLICE OFFICER, Shield No. 358 is being sued in his individual and official capacity.
9. UNDERCOVER POLICE OFFICER, Shield No. 93 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. UNDERCOVER POLICE OFFICER, Shield No. 93 is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.
11. UNDERCOVER POLICE OFFICER, Shield No. 93 is being sued in his individual and official capacity.
12. DETECTIVE KEVIN CLARKE is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. DETECTIVE KEVIN CLARKE is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.
14. DETECTIVE KEVIN CLARKE is being sued in his individual and official capacity.

15. SERGEANT ANIS NIKOCEVIC is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. SERGEANT ANIS NIKOCEVIC is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.

17. SERGEANT ANIS NIKOCEVIC is being sued in his individual and official capacity.

18. POLICE OFFICER JESUS SOSA is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER JESUS SOSA is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.

20. POLICE OFFICER JESUS SOSA is being sued in his individual and official capacity.

21. POLICE OFFICER JELANI MILLS is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. POLICE OFFICER JELANI MILLS is and was at all times relevant herein, assigned to Narcotics Borough Manhattan North.

23. POLICE OFFICER JELANI MILLS is being sued in his individual and official capacity.

24. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

25. Police Officers John Does #1-10 are being sued in their individual and official capacities.

26. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

27. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the

maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

28. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim and Supplemental Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

29. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

30. Defendant City of New York conducted a 50-h hearing on April 7, 2020.

31. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

32. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

33. On December 28, 2016, at approximately 3:30 p.m., plaintiff was lawfully present inside of the 116th Street 2 Train Subway Station located at 116th Street and Lenox Avenue, New York, New York, when the defendant police officers unlawfully approached plaintiff, grabbed plaintiff, and slammed plaintiff to the ground without legal justification and stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

34. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

35. Suddenly, without provocation or legal justification, the defendant police officers grabbed plaintiff and slammed plaintiff to the ground, causing plaintiff severe pain and injuries to her left knee and several fingers on both of plaintiff's hands.

36. At no time did plaintiff act in a physically threatening manner nor did the defendant officers have any objective factual basis to believe that plaintiff was a threat to them, nor did plaintiff resist the defendant police officers in any way.

37. The assault, battery and use of excessive force against plaintiff by the defendant police officers directly caused the pain and injuries to plaintiff's left knee and both hands/fingers.

38. At no time relevant herein did the defendant officers recover any guns, drugs, or other contraband on plaintiff's person or from plaintiff's possession, custody or control.

39. Nevertheless, plaintiff was unlawfully handcuffed by defendant officers and unlawfully arrested without legal justification or probable cause.

40. Plaintiff was transported by the defendant police officers to the 25th Precinct against her will.

41. At the 25th Precinct, plaintiff was searched, photographed, fingerprinted and placed in a holding cell by the defendants.

42. On December 28, 2016 at approximately 11:30 p.m., plaintiff was transported from the 25th Precinct to New York County Central Booking and placed in a holding cell.

43. The defendant police officers intentionally provided the New York County District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes she did not commit.

44. Specifically, the defendant police officers falsely stated to the New York County District Attorney's Office that plaintiff was found to be in possession drugs.

45. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

46. Plaintiff was unlawfully charged with Criminal Possession of a Controlled Substance in the Third Degree.

47. On December 29, 2016, plaintiff was arraigned in New York County Criminal Court and charged with crimes she did not commit without probable cause or legal justification and release on her own recognizance.

48. On January 3, 2017, the defendant police officers provided false information and testimony to the Assistant District Attorney and the Grand Jury.

49. On or about January 3, 2017, plaintiff was indicted by a grand jury based upon the fabricated testimony and/or false information documented in reports and the paperwork of the defendant police officers.

50. The presumption of probable cause created by the Grand Jury indictment is rebuttable in this case because the indictment was based upon false statements told to the grand jury and/or false information documented in reports and paperwork by the defendant police officers.

51. Specifically, the defendant police officers falsely stated to the Grand Jury that plaintiff was in possession of a controlled substance, when in fact they knew she was never in possession of a controlled substance.

52. Thereafter, on March 11, 2020, after being forced to appear in Court on approximately 37 occasions over the course of 3 years, all charges against plaintiff were dismissed and sealed.

53. On January 5, 2017, plaintiff went to the Emergency Room at Montefiore Hospital to treat the serious injuries to her left knee and both hands/fingers caused by the defendant police officers. Plaintiff underwent x-rays of her left knee and hands/fingers and was prescribed pain medication

54. On January 10, 2017, plaintiff was forced to follow up with an orthopedic specialist at Montefiore Hospital to treat persistent pain in plaintiff's left hand caused by the assault, battery and use of excessive force against plaintiff by the defendant police officers.

55. As a result of the unlawful arrest, plaintiff was immediately suspended from her job at the NYC Department of Education without pay and as a result lost wages in the amount of approximately \$60,000.

56. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, assault, battery, use of excessive force, denial of a fair trial, false arrest and imprisonment of plaintiff.

57. The unlawful stop, question, frisk search, assault, battery, use of excessive force, false arrest, denial of a fair trial and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. Defendants lacked probable cause to search plaintiff.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment
Rights**

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The use of excessive force by defendants by, amongst other things, by grabbing her, forcibly throwing her to the ground, and tightly handcuffing plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

83. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION**Negligent Hiring, Retention, Training and Supervision**

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION**Denial of Right to Fair Trial/Due Process**

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

88. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Manhattan County District Attorney's Office.

89. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Manhattan County District Attorney's Office.

90. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Manhattan County District Attorney's Office.

91. In withholding/creating false evidence against plaintiff Sharon Bannister, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

92. As a result of the foregoing, plaintiff Sharon Bannister, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

96. Plaintiff repeats and realleges paragraphs 1 through 69 as if fully set forth herein.

97. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

98. Defendants commenced and continued a criminal proceeding against plaintiff.

99. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

100. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

101. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Failure to Intervene

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

106. Defendants failed to intervene to prevent the unlawful conduct described herein.

107. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and he was humiliated and subject to other physical constraints.

108. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

109. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

111. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

112. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Sharon Bannister demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 16, 2020

By: /s/
STUART E. JACOBS
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE GUSTAVO ROSADO, Shield No. 513, Narcotics Borough Manhattan North, One Police Plaza, New York, NY 10038
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POLICE OFFICER JESUS SOSA, Narcotics Borough Manhattan North, One Police Plaza, New York, NY 10038
POLICE OFFICER JELANI MILLS, Narcotics Borough Manhattan North, One Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED AMENDED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 16, 2020

/s/
STUART E. JACOBS